

Constitutional Law

What Is a Constitution and What Does Constitutional Law Do?

A **constitution** is a written document that explains the basic rules and principles by which a country or state is governed. It represents the highest authority, created by the people, and sets up the structure and powers of the government. If the constitution says something must be done a certain way, that rule has to be followed above all others. It reflects the core values and hopes of the people for fair and lawful government.

The **U.S. Constitution** is a special kind of law. It was created directly by the people and can only be changed if the people agree to an amendment. A constitutional amendment requires a two-thirds vote in both the Senate and House of Representatives, and ratification by three-fourths of the state legislatures. Alternatively, two-thirds of the state legislatures can request a constitutional convention to propose amendments, which still must be ratified by three-fourths of state legislatures. Each state has its own constitution. A state constitution must follow the U.S. Constitution.

Constitutional law is the branch of law that explains how to read, understand, and apply constitutions. In the U.S., constitutional law plays a key role in shaping government actions. Our constitutions, federal and state, are written in broad terms so they can adapt as society changes. Over time, as people's needs and experiences evolve, so does the way we understand and use constitutional principles.

How Are Constitutions Different from Statutes?

A **constitution** lays out the main ideas and values that guide the government. It's designed not just to fix current problems but to guide the future. It's made by the people and represents their will. It gives a strong foundation for how the government and laws should work.

On the other hand, **statutes** are specific laws passed by lawmakers. They give more details on how certain things should be done. But if a statute conflicts with the constitution, the constitution always wins because it's the highest law of the land. When courts look at legal issues, and there's no statute that applies, they may turn to the constitution to decide what to do.

What Makes a Constitution Special?

A good constitution applies to everyone—leaders and citizens alike—during peace and war, and across all social and economic classes. Even though a written constitution

doesn't change often, it includes broad ideas that can be applied in new ways as society changes.

The people who wrote the U.S. Constitution knew they couldn't predict everything that would happen in the future. So, they didn't try to write laws for every situation. Instead, they wrote general rules that could be interpreted and applied in new situations. This makes the Constitution flexible and able to grow with the country.

Why Do We Have a Constitution?

The main job of a constitution is to set up a system of government that lasts. The U.S. Constitution lays out key ideas like the separation of powers between the three branches of government—legislative, executive, and judicial—and defines what each branch can and cannot do. It also protects people from government overreach and unfair treatment.

The Philosophy Behind American Constitutional Law

The U.S. is a **constitutional democracy**. That means the government's power comes from laws created by the people. All rights—whether public or private—must follow these laws. Even though we elect representatives, the government's power is limited by the Constitution to protect the rights of all citizens.

The power to govern comes from the people. Both the federal and state governments share this power. When states joined the U.S., they kept most of their original powers, except for those given to the federal government as set forth in the Constitution.

What Did the U.S. Constitution Change?

Before the Constitution, the U.S. was run under the **Articles of Confederation**, where each state acted like its own country. The Constitution united the states into one nation. It was based on the idea that all states needed to work together for everyone's success and survival.

One major goal of the Constitution was to protect the country from foreign threats, but an even bigger goal was to bring peace and unity at home. It aimed to prevent unfair treatment by the government and promote equal opportunity and protection for all citizens.

Key Features of the U.S. Constitution

The Constitution created a unique system of government that includes:

- A **representative democracy**, where the people elect their leaders
- A **dual system**, with both federal and state governments
- **Protection of individual rights** through constitutional limits on government
- A **separation of powers** between the legislative (makes laws), executive (enforces laws), and judicial (interprets laws) branches

The Constitution is the supreme law of the land, and every law in every state must follow it. It's not just a guide—it's the foundation of our legal and political system.

The United States Constitution, <https://www.archives.gov/founding-docs/constitution-transcript>, has seven articles:

- **Article I:** Establishes the legislative branch of government, which is Congress
- **Article II:** Establishes the executive branch of government, which is the office of the President
- **Article III:** Establishes the judicial branch of government, which is the federal court system
- **Article IV:** Defines the relationship between the states and the federal government
- **Article V:** Describes the process for amending the Constitution
- **Article VI:** Declares the Constitution to be the "supreme Law of the Land"
- **Article VII:** Ratifies the Constitution

The Constitution also includes a Preamble, which explains the purpose of the Constitution and the power of the government, and 27 amendments. The first 10 amendments are known as the Bill of Rights.

State constitutions

In America, each state is free to establish its own constitution. In doing so, a state constitution may provide such restrictions on the powers of its government as it deems appropriate. The constitution and statutes of a particular state are to be considered as one body of law. Even so, a state's statutory law is subordinate to its constitution, in as much as the state's constitution is the supreme or basic law of the state and is second in that state only to the United States Constitution in importance and precedence. For example, the Constitution of the State of Maryland (also known as its Declaration of Rights) is the supreme law of Maryland, subject only to the supremacy of the United States Constitution.

Bill of Rights

The first 10 amendments to the Constitution are known as the Bill of Rights, <https://www.archives.gov/founding-docs/bill-of-rights/what-does-it-say>. These are constitutional principles stating the rights each person inherently possesses, and the government cannot infringe upon.

First Amendment

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the government for a redress of grievances.

Second Amendment

A well-regulated militia, being necessary to the security of a free state, the right of the people to keep and bear arms, shall not be infringed.

Third Amendment

No soldier shall, in time of peace be quartered in any house, without the consent of the owner, nor in time of war, but in a manner to be prescribed by law.

Fourth Amendment

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Fifth Amendment

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a grand jury, except in cases arising in the land or naval forces, or in the militia, when in actual service in time of war or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

Sixth Amendment

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the state and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses

against him; to have compulsory process for obtaining witnesses in his favor, and to have the assistance of counsel for his defense.

Seventh Amendment

In suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury, shall be otherwise reexamined in any court of the United States, than according to the rules of the common law.

Eighth Amendment

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

Ninth Amendment

The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people.

Tenth Amendment

The powers not delegated to the United States by the Constitution, nor prohibited by it to the states, are reserved to the states respectively, or to the people.

The First Amendment

The First Amendment as noted above covers multiple rights from freedom of speech and religion to the right to assemble and to petition the government for redress of grievances. For the purposes of this course, the focus will be on the first two parts of the First Amendment – freedom of speech and freedom of religion.

Freedom of Speech

Video - [First Amendment and Freedom of Speech](#)

Freedom of speech in the most well-known portion of the First Amendment. But what exactly does it mean to say we have freedom of speech? Is all speech free? What, if any, restrictions can be placed on speech by the government?

Speech is usually denoted by words – either in writing or verbal. But actions can also be considered speech. Known as “symbolic speech” actions are also protected under the First Amendment. So, whether you write something, say something, or perform some action - all are considered speech under the First Amendment.

EXAMPLE: Tom is sitting quietly in a public park holding a sign that says, “Save the Earth—Stop Pollution!” He doesn’t speak to anyone, but he stays in the park all

afternoon where lots of people walk by. This is his way of expressing his beliefs about the environment. Even though he's not speaking out loud, this kind of silent protest is a form of expression that is protected by the First Amendment.

EXAMPLE: A group of popular actors and artists organize a public art show where each piece is designed to show their disagreement with a new government policy on immigration. Some paintings show people breaking down walls, while others use powerful symbols to express messages of unity and freedom. Even though the event is clearly critical of the government, this kind of creative expression is protected by the First Amendment.

EXAMPLE: Lisa Lane dresses in a homemade robot costume and stands in front of city hall, slowly spinning in circles while holding a sign that reads, "Programmed for Peace." Every few minutes, she beeps loudly and recites lines of poetry through a voice changer. Most people walking by are confused—some think it's performance art, others think it's a protest, and a few just think it's weird. Still, even if her message isn't clear, Lisa's strange and creative performance is a form of expression protected by the First Amendment.

The First Amendment protects both speech from individuals and speech from corporations.

Restrictions on Free Speech

When can the government put limits on speech? Here are some common areas where the government limits free speech.

Time, Place and Manner- The first restriction usually discussed is that of time, place and manner. You cannot invoke your right to free speech anywhere, in any way, and at any time you want. For example, if you wanted to protest the war in Ukraine, you would not be able to have a group of 200 people march down your residential street at 2:00am on a Tuesday with spotlights, air horns, fireworks, setting cars on fire, etc. Your neighbors would probably not appreciate the gesture, but equally important, your actions may violate state and/or local laws. Time, place and manner restrictions are "content-neutral," meaning they are not focused on what you are saying but rather the means by which you intend to say it.

Therein, the government can impose restrictions on the time(s) of day or day(s) of the week speech may occur by way of noise ordinances or similar restrictions. For a discussion of Maryland Noise Ordinances see [A sound approach to noise that annoys](#). The government may also limit the area(s) in which protests or similar gatherings may take place in. These limitations are usually done for public safety reasons. For

example, you cannot conduct a protest in the middle of Interstate 95 at Exit 74 to protest climate change- it would be a safety issue. Similarly, you cannot block the entrance or exit from certain buildings for public safety reasons, such as hospitals.

The government can require protestors to obtain a permit from a local city or county entity stating when and where a protest will occur and how many people are anticipated to attend. Therein, the government can establish limits on the number of people that may gather in a particular area, the size of signs that can be carried or posted, the type of signs protestors may carry [not the content, but rather signs that cannot be used as weapons], the use of amplified sound, etc. See Baltimore County's Permit Application for a non-profit gathering permit. [Baltimore County Application for Non-Profit Gathering Permit](#)

Obscenity – What is or is not obscene can be hard to define as one person's obscenity can be another person's art. Supreme Court Justice Potter Stewart famously said in 1964 in the case *Jacobellis v. Ohio*, 378 U.S. 184, 197 (1964) when referring to his test for obscenity – “I know it when I see it.” *Jacobellis* involved the showing of a Frech film “The Lovers” in an Ohio art-house theater. The film was deemed to be in violation of Ohio's state obscenity laws and the theater owner, Nico Jacobellis, was convicted of a criminal violation of the statute and fined \$2,500 (this equates to \$5,000 in 2025). The conviction was upheld by the Ohio Supreme Court. The case made it to the U.S. Supreme Court where a five-judge majority reversed the conviction and held the movie protected under the First Amendment. However, the decision was not a strong one as four of the justices in the majority filed concurring opinions with each having a different “test” for obscenity, including Justice Stewart. <https://cblidf.org/about-us/case-files/obscenity-case-files/obscenity-case-files-jacobellis-v-ohio-i-know-it-when-i-see-it/>

Corporate Political Speech- The First Amendment protects more than just speech by individuals. It also protects **and regulates** speech by businesses. Businesses “speak” in a variety of ways, including advertising, political donations, and issuing statements on public issues and proposed laws. Political speech includes monetary and non-monetary donations to candidates or to support or oppose various political issues and lobbying of members of government in support of or against various political proposals.

Restrictions on corporate political speech must survive strict scrutiny- which means the government must establish that it has a compelling governmental interest, and any restriction imposed must be narrowly tailored using the least restrictive means available. This concept was last tested in 2010 with the landmark Supreme Court case of *Citizens United v. Federal Election Commission*, 558 U.S. 310 (2010).

Citizens United sought an injunction against the Federal Election Commission in the United States District Court for the District of Columbia to prevent the application of the

Bipartisan Campaign Reform Act (BCRA) to its film *Hillary: The Movie*. The film expressed opinions about whether Senator Hillary Rodham Clinton would make a good president. In an attempt to regulate "big money" campaign contributions, the BCRA applies a variety of restrictions to "electioneering communications." Section 203 of the BCRA prevents corporations from funding such communication from their general treasuries. Sections 201 and 311 require the disclosure of donors to such communication and a disclaimer when the communication is not authorized by the candidate it intends to support. <https://www.oyez.org/cases/2008/08-205>

Citizens United argued that: 1) Section 203 violates the First Amendment on its face and when applied to *Hillary: The Movie* and its related advertisements, and that 2) Sections 201 and 203 are also unconstitutional as applied to the circumstances. <https://www.oyez.org/cases/2008/08-205>

The United States District Court denied the injunction. The U.S. Supreme Court held that under the First Amendment corporate funding of independent political broadcasts in candidate elections cannot be limited. The majority maintained that political speech is indispensable to a democracy, which is no less true because the speech comes from a corporation. However, the majority also held that the BCRA's disclosure requirements as applied to the film were constitutional, reasoning that disclosure is justified by a "governmental interest" in providing the "electorate with information" about election-related spending resources. And the Court also upheld the disclosure requirements for political advertising sponsors and upholding the ban on direct contributions to candidates from corporations and unions. <https://www.oyez.org/cases/2008/08-205>.

Commercial Speech- Different from corporate political speech, commercial speech is focused on advertising a product or service. This speech is also protected under the First Amendment; however, commercial speech does not rise to the level of political speech and therefore receives less protection. Government regulation of commercial speech must only pass intermediate scrutiny – meaning a government regulation must advance a substantial government interest and be narrowly tailored to achieve that result.

Commercial speech regulation was litigated in the case of *Central Hudson Gas & Electric Corp. v. Public Service Commission of New York*, 447 U.S. 557 (1980). The Public Service Commission of New York (PSC), in the interest of conserving energy, enacted a regulation that prohibited electric utilities from promoting electricity use. The PSC's regulation distinguished promotional advertising from informational advertising, which was permitted. Central Hudson Gas and Electric challenged the regulation in a New York State Supreme Court, which upheld the regulation. The Appellate Division of

the New York State Supreme Court affirmed the decision, as did the New York Court of Appeals (New York's Supreme Court). <https://www.oyez.org/cases/1979/79-565>

In an 8-1 opinion (Justice Rehnquist being the sole dissenting vote), the U.S. Supreme Court overruled the New York Court of Appeals. The Court recognized New York's interest in promoting energy conservation and accepted that the PSC's regulation would directly further that interest. However, since the regulation restricted all promotional advertising regardless of its effect on electricity use, it violated the First and Fourteenth Amendment. <https://www.oyez.org/cases/1979/79-565>

Advertising, however tasteless and excessive it sometimes may seem, is nonetheless dissemination of information as to who is producing and selling what product, for what reason, and at what price. So long as we preserve a predominantly free enterprise economy, the allocation of our resources in large measure will be made through numerous private economic decisions. It is a matter of public interest that those decisions, in the aggregate, be intelligent and well informed. To this end, the free flow of commercial information is indispensable. (*citations omitted*). And if it is indispensable to the proper allocation of resources in a free enterprise system, it is also indispensable to the formation of intelligent opinions as to how that system ought to be regulated or altered. Therefore, even if the First Amendment were thought to be primarily an instrument to enlighten public decision making in a democracy, we could not say that the free flow of information does not serve that goal.

Virginia Pharmacy Board v. Virginia Citizens Consumer Council, at 765.

Other Unprotected Speech- Other areas where speech may also be regulated or not subject to First Amendment protection include defamation and speech that is an incitement to violence.

Video - [Speech that is Unprotected](#)

Defamation is the publication of false information about another that damages their reputation. The key elements of defamation are 1) publication – this must be to a third party; 2) of false information – truth is the ultimate defense to a defamation claim; 3) that causes damage to reputation – if the statement causes no damage – there is no defamation.

Starting with the first element – publication, this must be to a third party, either verbally or in writing. Verbal defamation is also known as slander – think “s” for spoken, “s” for slander. Written defamation is known as libel (sorry no cute memory tool for this one). Getting back to publication - I can tell you to your face that you are a thief and a liar

(assuming they are false statements) and if only you and I hear to conversation – there is no publication as no third party heard the statements and therefore, no defamation. The minute I tell another person these same false statements, then you have publication and potentially defamation.

The statements must be false statements of fact to be actionable. They must not be mere opinions. How do you know the difference? It's not easy to tell sometimes. In determining whether a statement is fact or opinion, courts will look to the exact words that were used. Can they be verified by a third party? If so – the closer the words will be to statements of fact. Courts will also ask - What was the context in which the statement was made? Who was the intended audience? Would a reasonable person find the statement credible?

EXAMPLE: Telling your neighbor, Tom, that your other neighbor, Sally, is a terrible person or mean or a jacka@# is not defamation – it is an opinion.

EXAMPLE: In contrast, telling Tom that Sally is a thief who stolen money from the local recreation club when Sally was the treasurer may be defamation if the information not true and causes damage to Sally's reputation.

Incitement to Violence – Words that may incite violence or mass panic are not protected speech. Remember the old saying “You cannot shout fire in a crowded theater.” Well, you can shout FIRE – if there is a fire. But if there is no fire and you shout fire to incite panic and someone is injured, your words are not protected.

Other words that incite violence are known as “fighting words.” Therein, specific threats to harm an individual are not protected.

EXAMPLE: If you tell John that you are going to kill him- that speech is not protected and you could be charged.

Racial or ethnic slurs or slurs that target a person's protected status, such as gender, nationality, religion, sex, etc., may also be deemed fighting words. But, we use violent rhetoric every day (“put your target in the crosshairs”, “take a shot at it” [referring to challenging someone to a game], etc.) - so when is something deemed unprotected?

Similarly to defamation and fact versus opinion, the court will look to the context the words were used (general statements versus specific words), the immediacy of any threat (the more remote the threat, the more likely the speech will be protected), the intent of the speaker (was it to incite actual violence and was it reasonable to believe this would occur), how the words were delivered (face to face, online, in writing). Face-to-face statements tend to be seen as more of an immediate threat.

See https://www.law.cornell.edu/wex/fighting_words for a discussion of the evolution of the U.S. Supreme Court's decisions on "fighting words."

Finally, there are some other "compelling" government interest areas where the government can restrict free speech. Some notable areas are "gag orders" by a judge to prevent individuals from discussing a case outside of court to prevent possible tainting of a potential jury pool. Also, information that is deemed "classified" or "top secret" can be prevented from disclosure for national security reasons.

First Amendment- Freedom of Religion

The next major area covered by the First Amendment is referred to as the freedom of religion. Freedom of religion covers two aspects of religion – the prohibition against establishing a national religion and the free exercise of religion.

Video - [Freedom of Expression and the Establishment Clause](#)

Establishment Clause- The Establishment Clause (really an anti-establishment clause) was intended to prevent government support for one particular religion over another, as well as over non-religion. "A large proportion of the early settlers of this country came here from Europe to escape the bondage of laws which compelled them to support and attend government-favored churches." *Everson v. Board of Education*, 330 U.S. 1, 8 (1947).

The *Everson* Court provided a list of state actions that violate the Establishment Clause. The Court did not present this list as comprehensive, but rather as a minimal list of activities prohibited by the First Amendment. These include:

- setting up a state church;
- passing laws which specifically aid one religion or aid religions generally;
- forcing or otherwise influencing individuals to attend or not attend church;
- punishing people for ascribing to certain beliefs or disbeliefs or for attending or not attending church;
- taxes levied to support religious institutions or activities; or
- governmental participation in religious organizations or participation by religious organizations in governmental activities. *Everson* at 15-16.

In *Lemon v. Kurtzman*, 403 U.S. 602 (1970), the Supreme Court provided a three-part test for Establishment Clause analysis. Although for some time it was questionable whether the *Lemon* Test would continue to be applied in such cases, the Court, in 2000, stated that "we assess [Establishment Clause cases] by reference to the three factors first articulated in *Lemon v. Kurtzman*...which guides the general nature of our inquiry in this area." *Santa Fe Independent School District v. Jane Doe*, 530 U.S. 290, 314 (2000).

The three-part *Lemon* Test asks:

1. Does the law have a secular purpose? If not, it violates the Establishment Clause.
2. Is the primary effect either to advance religion or to inhibit religion? If so, it violates the Establishment Clause.
3. Does the law foster an excessive governmental entanglement with religion? If so, it violates the Establishment Clause.

Lemon, at 612-13.

These are not factors that are employed in some balancing test, but rather, *these are all requirements that must be met for a law to pass review*. There must be a secular purpose, the primary effect must not be the aid or inhibition of religion, and there must be no excessive entanglement. If any of these three requirements are not met, the law violates the Establishment Clause. See e.g., *Windmar v. Vincent*, 454 U.S. 263, 272 (1981).

EXAMPLE: Southern state's legislature recently passed a law requiring that a copy of the Ten Commandments must be posted on the walls of public classrooms statewide. No public funds will be diverted for this purpose as the materials will all be privately donated. Below the last commandment on each poster the following words will be printed: "The secular application of the Ten Commandments is clearly seen in its adoption as the fundamental legal code of Western Civilization and the Common Law of the United States." Despite this footnote and a legislative history which purported to enact the law for secular purposes, mere recitation of secular purpose is insufficient to prevent a first-prong Lemon Test failure and therefore an Establishment Clause violation. See Stone v. Graham, 449 U.S. 39 (1980).

<https://www.lawshelf.com/coursewarecontentview/freedom-of-religion-and-the-establishment-clause>

Free Exercise Clause- The second part of the First Amendment's protection of religious freedom is called the Free Exercise Clause. This clause says that Congress cannot stop people from practicing their religion. That means the government is not allowed to interfere with religious beliefs or practices—even if that interference was not on purpose. If the government intentionally tries to block or limit religious practices, that almost always goes against the Constitution. But even if a law accidentally affects someone's ability to practice their religion, it can still be a problem. For the law to be allowed, it must serve an important government goal and be the least restrictive way to achieve that goal.

If the government can meet its goal just as well by making an exception for someone's religious beliefs, then it has to give that exception. Otherwise, the law could be struck down for violating the Free Exercise Clause.

Video - [The Free Exercise Clause](#)

EXAMPLE: Eastern state passes a law which provides that "no law enforcement officer shall wear a hat or other headgear while on duty which is not part of the official uniform." The law was passed primarily to address the wearing of baseball caps and cowboy hats by various members of the force. Although the primary effect of the law is not to inhibit religion, an Orthodox Jew would thereby be prevented from wearing a yarmulke (a skullcap required by the religion). While this law does not necessarily violate the second prong of the Lemon test, it may violate the Free Exercise Clause unless the government can show a compelling interest in upholding the regulation. See Goldman v. Weinberger, 475 U.S. 503 (1986).

EXAMPLE: A northern state passed a law providing that all children in the state must attend school until the age of 16. A small but established community of Amish citizens objects, arguing that their religion requires that children be taught the ways of the land and that they can be educated informally by their community. The Amish also contend that compulsory public school education conflicts with their religious beliefs. Because the state's goals can largely be achieved even if the Amish are granted an exemption from the law, such an exemption must be granted to prevent the law from violating the Free Exercise Clause. See Wisconsin v. Yoder, 406 U.S. 205 (1972).

<https://www.lawshelf.com/coursewarecontentview/freedom-of-religion-and-the-free-exercise-clause>

Due Process and Equal Protection

14th Amendment (1868)

Section 1. All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the state wherein they reside. No state shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any state deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

The Fourteenth Amendment, passed in the aftermath of the Civil War was meant to guarantee newly freed slaves fair treatment under federal, state and local laws by preventing unreasonable discrimination based on race. It has since been expanded to address discrimination based on other protected statuses, such as religion, gender,

race, ethnicity, nationality, sex, etc. This means that people who are similarly situated must be treated similarly under the law.

Due Process

Due Process is such an important concept in Constitutional law it is listed in both the Fifth and Fourteenth Amendments. Under the Fifth Amendment, due process applies to the federal government. Under the Fourteenth Amendment, due process is expanded to the states and local governments. It is the concept that an individual receives fundamental fairness when facing governmental action against them.

Video - [Due Process Under the 5th and 14th Amendments](#)

Due process is all about fairness, and it comes in two main parts: procedural due process and substantive due process. Procedural due process is about making sure the government plays by the rules before it can take away your life, freedom, or property. That means you have the right to know what the government is doing, the right to speak up and defend yourself, and the right to have a fair and unbiased decision-maker—like a judge or a jury.

On the other hand, substantive due process is about what the law actually says. Even if the government follows all the right steps, the law itself still has to be fair and reasonable. This part of due process protects people from laws that go too far, especially when they affect fundamental rights, like the right to privacy—even if that right is not directly written in the Constitution. Basically, procedural due process is about how the government acts, and substantive due process is about what the government is doing and why.

A famous example of a state law struck down for violating due process is *Loving v. Virginia*, 388 U.S. 1 (1967). In *Loving*, the State of Virginia passed a law banning interracial marriages. An interracial couple married in the District of Columbia and then returned to live in Virginia. A Virginia grand jury issued an indictment charging the Lovings with violating Virginia's ban on interracial marriages. On January 6, 1959, the Lovings pleaded guilty to the charge, and were sentenced to one year in jail; however, the trial judge suspended the sentence for a period of 25 years on the condition that the Lovings leave the state and not return to Virginia together for 25 years. *Loving*, at 3.

After their convictions, the Lovings moved to the District of Columbia. On November 6, 1963, they filed a motion in Virginia state court to vacate the judgment and set aside their sentence on the ground that the statutes violated the Fourteenth Amendment. While the motion was pending, in October 1964 the Lovings instituted a class action in the United States District Court for the Eastern District of Virginia requesting that a

three-judge court be convened to declare the Virginia statutes unconstitutional and to enjoin state officials from enforcing their convictions. On January 22, 1965, the Virginia trial judge denied the motion to vacate the sentences in the state case, and the Lovings appealed to the Supreme Court of Appeals of Virginia (Virginia's highest court). On February 11, 1965, a three-judge federal District Court continued the case to allow the Lovings to present their constitutional claims to Virginia's highest state court. *Loving*, at 3.

The Supreme Court of Appeals of Virginia upheld the constitutionality of the anti-miscegenation statutes and, after modifying the sentence, affirmed the couple's convictions. *Loving*, at 3-4. The Lovings then appealed this decision to the U.S. Supreme Court. In reversing the Lovings conviction the U.S. Supreme Court held

[t]hese statutes also deprive the Lovings of liberty without due process of law in violation of the Due Process Clause of the Fourteenth Amendment. The freedom to marry has long been recognized as one of the vital personal rights essential to the orderly pursuit of happiness by free men. Marriage is one of the "basic civil rights of man," fundamental to our very existence and survival. (*citations omitted*). To deny this fundamental freedom on so unsupportable a basis as the racial classifications embodied in these statutes, classifications so directly subversive of the principle of equality at the heart of the Fourteenth Amendment, is surely to deprive all the State's citizens of liberty without due process of law. The Fourteenth Amendment requires that the freedom of choice to marry not be restricted by invidious racial discriminations. Under our Constitution, the freedom to marry, or not marry, a person of another race resides with the individual, and cannot be infringed by the State.

Loving, at 12.

Equal Protection

Video [Equal Protection](#)

Equal Protection- In addition to due process rights, the Fourteenth Amendment also states "[n]o State shall...deny to any person within its jurisdiction the equal protection of the laws." The Equal Protection Clause is a key part of the Fourteenth Amendment. It is a guarantee that people within a state's jurisdiction will be treated equally under the law.

The principle of equal protection means that people who are in the same situation or share similar characteristics should be treated the same way by the government. The Equal Protection Clause has been used in many landmark cases, including those involving race, gender, and other protected classifications, as well as challenges to government actions that discriminate against people based on their citizenship status.

Courts use different levels of scrutiny to review equal protection claims, depending on the type of classification or discrimination involved. The three levels of scrutiny under the Fourteenth Amendment are: 1) strict scrutiny; 2) intermediate scrutiny; and 3) rational basis review.

Strict Scrutiny: When suspect classifications or fundamental rights are at stake, Equal Protection analysis requires the use of the strict scrutiny standard. As its name implies, this level of review is far more stringent than either rational basis review or intermediate scrutiny (discussed below). For years, strict scrutiny was applied only in the cases of laws which discriminated against individuals on the basis of race or national origin, but this exclusivity has been tested at times and might not persist indefinitely. This level of review, however, will not be applied simply because a law is, in its effect, prejudicial against a suspect classification or regarding a fundamental right. Rather, this high standard is intended to be a means by which particularly invidious or prejudicial discriminatory purposes, if it exists, can be brought to light. See *U.S. v. Carolene Products Co.*, 304 U.S. 144, 153 (1938).

EXAMPLE: A southern state passes a law which requires “all black employees shall receive 3/5 the compensation of a white employee for performing the same job.” This racial classification will be subjected to strict scrutiny standard review as it is based exclusively on race.

In order for a law to survive strict scrutiny under the Equal Protection Clause, the state interest involved must be more than “important” – it must be **compelling**. And the law itself must be **necessary** in order to achieve the objective – if there is any less discriminatory means of achieving the goal, the law will be struck down. See, e.g., *Loving*, at 11. The requirement of necessity manifests itself in that courts require that the law be **narrowly tailored** to meet the objective. See *Nunez v. City of San Diego*, 114 F. 3d 935, 946 (9th Cir. 1997). As a practical matter, it is rare for a law to survive strict scrutiny review, and the last time a law involving discrimination on the basis of national origin or race survived strict scrutiny was in 1944. See *Korematsu v. U.S.*, 323 U.S. 214 (1944) (law requiring internment camps for Japanese-Americans during World War II upheld as constitutional).

Intermediate Scrutiny: For a number of years, all Equal Protection cases were subject to either rational basis review or strict scrutiny. Beginning with the Burger Court (Chief

Justice Warren Burger) in the 1970s and early 1980s, the notion of "intermediate scrutiny" began to develop in cases like *Reed v. Reed*, 404 U.S. 71 (1971) (Idaho law requiring men to be preferred over women in the appointment of estate administrators was unconstitutional) and *Frontiero v. Richardson*, 411 U.S. 677 (1973) (benefits provided by U.S. military to spouses of servicemembers cannot be different for female versus male spouses), where it struck down sex-based classifications.

In *Clark v. Jeter*, 486 U.S. 456, 461 (1988), the Court ruled that to "withstand intermediate scrutiny, a statutory classification must be substantially related to an important governmental objective." So, the relation to the objective must be more than merely rational – it must be substantial – and the objective itself must be more than merely valid– it must be important.

Intermediate scrutiny applies to what are sometimes referred to as "quasi-suspect" classifications, which have been applied to discriminatory classifications based on sex or illegitimacy. Unlike rational basis review, a state's objectives for the discriminatory laws subjected to intermediate scrutiny "must be genuine, not hypothesized or invented post hoc in response to litigations" and the justification offered by the state must be "exceedingly persuasive," at least in cases of gender-based discrimination. *United States v. Virginia*, 518 U.S. 515, 533 (1996) (Virginia Military Institute's male-only admission policy violated the Equal Protection Clause of the Fourteenth Amendment).

The U.S. Court of Appeals for the Second Circuit recently summarized this level of scrutiny well:

Intermediate scrutiny typically is used to review laws that employ quasi-suspect classifications...such as gender...or legitimacy.... On occasion intermediate scrutiny has been applied to review a law that affects 'an important though not constitutional right.'

Ramos v. Town of Vernon, 331 F.3d 315, 321 (2d. Cir. 2003). Laws relating to gender or alienage, along with other "important, but not constitutional rights," will be subjected to this middle level of scrutiny.

Rational Basis Review: Today, rational basis review asks whether "there is some rational relationship between disparity of treatment and some legitimate governmental purpose." *Central State University v. American Assoc. of University Professors*, 526 U.S. 124, 128 (1999) (citing *Heller v. Doe*, 509 U.S. 312, 319-321 (1993)). Rational basis review applies to all other classifications that do not fall under strict scrutiny or intermediate scrutiny.

When a law is being reviewed under the rational basis test, the government has it pretty easy. The state does not have to prove that the law makes perfect sense or even explain why they passed it. If the law treats different groups of people differently, that is allowed—as long as the group is not one that gets special protection under the Constitution (like race or religion).

Basically, the law will be considered valid as long as any reasonable explanation for it could exist, even if that was not the real reason it was passed. Courts do not ask a lot of questions in these cases—they give lawmakers a lot of freedom and trust to do what they think is best.

So, even if a law seems odd or unfair, as long as there is some possible legitimate purpose it could be connected to, it will usually pass the rational basis test.

*EXAMPLE: New Ridgefield, Connecticut, is an up-and-coming, bustling small city. Traffic accidents are on the rise, in part because of the high number of private automobiles which carry advertising signs for various services and products. In an effort to reduce traffic accidents, a law is passed banning advertisements on private vehicles except for services or products offered by the owner of that vehicle. Assume that rational basis review will apply. Under that standard, the law seems rationally related to the intent of reducing accidents. The fact that the law does not go further and ban all advertisements is not sufficient to strike it down under the Equal Protection Clause. See *Railway Express Agency v. New York*, 336 U.S. 106 (1949).*

The Equal Protection Clause plays a crucial role in advancing civil rights and ensuring fair treatment under the law, particularly in areas like voting, education, and housing. See <https://www.lawshelf.com/coursewarecontentview/history-of-equal-protection-and-the-levels-of-review>